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EMERITUS CORPORATION AND BREA WHITTIER, LLC DBA BROOKDALE CENTRAL
WHITTIER vs PHYLLIS SAUNDERS

CASE NO.: 25NWCV04101

HEARING: September 17, 2026 @ 9:30 a.m.

#9

TENTATIVE ORDER

Defendant Phyllis Saunders' Motion for New
Trial is DENIED.

Defendant to give notice.

Background

This is an unlawful detainer action. On November 14, 2025, Plaintiffs Emeritus Corporation ("Emeritus") and Brea Whitter, LLC, doing business as Brookdale Central Whittier, ("Brookdale") (collectively, "Plaintiffs") filed this action against Defendant Phyllis Saunders ("Defendant"). The Complaint alleges that Brookdale is a resident care facility for the elderly (RCFE) located at 8101 Painter Avenue in Whittier, California 90602 ("Premises"). Brookdale is the owner of Premises, and Emeritus Corporation is the lessee and property manager of the Premises. (Compl., ¶ 4.) On April 24, 2024, the parties entered into a Residency Agreement, wherein Defendant agreed to pay \$3,291.00 in monthly rent. On August 11, 2025,

Plaintiffs served a 30-day notice to pay or quit on Defendant.

On June 25, 2026, the Court heard Plaintiff's Motion for Summary Judgment ("MSJ") and took the MSJ under submission. (6/25/26 Minute Order.) On July 1, 2026, the Court issued its ruling, granting the MSJ.

On July 16, 2026, Defendant filed a Notice of Intent to Move for New Trial.

On July 27, 2026, Defendant filed this Motion for New Trial pursuant to Code of Civil Procedure section 657, subdivisions (1), (6), and (7).

On August 7, 2026, Plaintiffs filed an opposition. No reply has been filed as of September 16, 2026.

Legal Standard

Code of Civil Procedure section 657 provides, in relevant part, as follows:

"The verdict may be vacated and any other decision may be modified or vacated, in whole or in part, and a new or further trial granted on all or part of the issues, on the application of the party aggrieved, for any of the following causes, materially affecting the substantial rights of such party:

1. Irregularity in the proceedings of the court, jury or adverse party, or any order of the court or abuse of discretion by which either party was prevented from having a fair trial.

[...]

6. Insufficiency of the evidence to justify the verdict or other decision, or the verdict or other decision is against law.

7. Error in law,

occurring at the trial and excepted to by the party making the application.”

(Code Civ. Proc., § 657.)

A new trial motion is available to challenge an order granting summary judgment. (See *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 858.)

A party intending to move for a new trial shall file with the clerk and serve on adverse parties a notice of intention to move for new trial “[w]ithin 15 days of the date of serving notice of entry of judgment. . .” (Code Civ. Proc., § 659, subd. (a)(2).)

“Within 10 days of filing the notice, the moving party shall serve upon all other parties and file any brief and accompanying documents, including affidavits in support of the motion. The other parties shall have 10 days after that service within which to serve upon the moving party and file any opposing briefs and accompanying documents, including counter-affidavits. The moving party shall have five days after that service to file any reply brief and accompanying documents. These deadlines may, for good cause shown by affidavit or by written stipulation of the parties, be extended by any judge for an additional period not to exceed 10 days.” (Code Civ. Proc., § 659a.)

“[T]he power of the court to rule on a motion for a new trial shall expire 75 days after the mailing of notice of entry of judgment by the clerk of the court pursuant to Section 664.5 or 75 days after service on the moving party by any party of written notice of entry of judgment, whichever is earlier, or if that notice has not been given, 75 days after the filing of the first notice of intention to move for a new trial.” (Code Civ. Proc., § 660, subd. (c).)

Discussion

Defendant moves for new trial. Defendant asserts that she served a Notice of Intent to Move for New Trial within 15 days of the date of Notice of Entry of Judgment on July 1, 2026. This Motion was filed within 10 days of that Notice Defendant notes that the deadline was on a weekend, extending the deadline to Monday. Thus, this Motion is timely.

Defendant argues that the Court erred in granting summary judgment in favor of Plaintiffs because the underlying 30-day Notice to Pay or Quit ("Notice") is defective on its face. Specifically, the Notice fails to provide the name and telephone number to whom Defendant should direct payment by mail pursuant to Code of Civil Procedure section 1161, subdivision (2) [stating that 3-day notice must state "the amount that is due, the name, telephone number, and address of the person to whom the rent payment shall be made, and, if payment may be made personally, the usual days and hours that person will be available to receive the payment"].)

The Notice provides the following options for payment:

"1. Payment may be mailed, addressed as follows:

Brookdale Central
Whittier

8101 Painter
Avenue

Whittier, CA 90602

2. Alternatively, payment may be made by personal delivery by any of the following means:

Mario Preston,
Operations Specialist

Brookdale Central
Whittier

8101 Painter
Avenue

Whittier, CA 90602

Hours: Saturday
through Sunday, 9:00 a.m. — 5:00 p.m.

Phone: (707)

575-7503"

(Compl., Exh. 2.)

Defendant argues that "while the statute provides that there are additional requirements for landlords who wish to demand personal or electronic payment, there are no demands for payment by mail which are exempt from the basic requirement to provide a name and telephone number." (Mot., 6:27, 7:1-2.) Defendant cites SVF Grosvenor Del Rey Corp. v. Schwarz ("SVF Grosvenor") (2026) 120 Cal. App. 5th Supp. 15, 19.)

Defendant asserts that there has been an irregularity in the in the proceedings of the court, insufficient evidence to justify the decision, or an error in law pursuant to Code of Civil procedure section 657, subdivision (1), (6)-(7). New trial is thus warranted.

In opposition, Plaintiffs first argue that the Motion is procedurally defective. Plaintiffs' counsel declares that Mr. Donovan Haley was Defendant's counsel of record when this Motion was filed. (Anguiano Decl., ¶ 5.) However, the Motion was filed by an attorney named Abe Rinck from Eviction Defense Network, who had not appeared in this case before and for whom no notice of substitution of counsel was ever filed. Such substitution is in violation of Code of Civil Procedure section 285 ["When an attorney is changed. . .written notice of the change and of the substitution of a new attorney, or of the appearance of the party in person, must be given to the adverse party. Until then he must recognize the former attorney."]. Plaintiffs assert that "courts distinguish between individual attorneys, who are considered 'counsel of record,' and the firms or organizations where they work." (Opp., 4:5-7.)

Plaintiffs further argue that the Motion substantively fails. Defendant attempts to argue three separate grounds for new trial based on the same alleged defect in the Notice.

Firstly, subdivision (1) of section 657 does not apply here because a party must move based on "upon affidavits" or "the minutes of the court" pursuant to that section. (See Code Civ. Proc.. § 658 ["When the application is made for a cause mentioned in the first, second,

third and fourth subdivisions of Section 657, it must be made upon affidavits; otherwise it must be made on the minutes of the court.”].) Here, Defendant does not move based on affidavits or the court’s minutes.

Second, subdivision (6) of section 657 does not apply here. Defendant appears to argue that the Court’s decision is “against the law.” (Code Civ. Proc., § 657, subd. (6).) However, Plaintiffs assert that 1) courts mainly apply this subsection in cases that involve an improper verdict or a defective statement of decision, and 2) it does not overlap with any of the other grounds for new trial. Thus, because Defendant claims that her Motion is based on two other grounds, Defendant cannot also rely on subdivision (6).

Lastly, subdivision (7) of section 657 does not apply because the “excepted to” language indicates that the moving party must have timely objected to the “error in law.” Defendant does not argue that she did so. Defendant did not claim that the Notice was defective at any point prior to this Motion. Further, Defendant has failed to show that she will be prejudiced if the Motion is not granted based on this ground.

Plaintiffs lastly assert that, even if Defendant could establish that any of these grounds apply, the Motion still fails because the Notice is valid. Firstly, the name of a “person” under Code of Civil Procedure section 1161, subdivision (2) includes corporate entities. Here, the Notice contains the name of the corporate entity, “Brookdale Central Whittier.” Further, the pay-by-mail and pay-in-person instructions contain the same corporate name and address: Brookdale Central Whittier, 8101 Painter Avenue, Whittier, CA 90602. Plaintiffs argue that “[g]iven how the Notice was formatted and organized, a reasonable person would understand that the telephone number listed applied to the payment instructions generally, not just for payment in person.” (Opp., 8:9-12.)

Plaintiffs argue that Defendant’s cited case, *SVF Grosvenor*, should not be followed here. The Appellate Division’s opinion was based on the risk that the pay-or-quit notice was confusing to the tenant. Specifically, that case involved a notice in which the pay-by-mail and pay-in-person instructions were in “separate provisions on separate pages” of the notice, and the name and telephone number of the payee were only listed with the pay-in-person instructions. (*SVF Grosvenor*, supra, 120 Cal. App. 5th Supp. at p. 25.) The Appellate Division reasoned that there was a risk

of tenant confusion, stating the following: “the tenant would have to search the notice. . .looking for a person’s name, telephone number and address, potentially leading to the rent being sent to a different person or a different address than intended by the landlord and/or rent not being provided in a timely manner. . .This would be inimical to the purposes of the statute: to ensure the tenant is provided clear information to avoid unnecessary evictions.” (Ibid.)

Here, the underlying Notice presents no similar risk of confusion as the notice in SVF Grosvenor. All of the contact information required by Code of Civil Procedure section 1161, subdivision (2) was listed on the same page and in the same paragraph of the Notice.

No reply has been filed. The Court notes that a reply was due five days after the opposition was served pursuant to Code of Civil Procedure section 659a. That deadline was August 12, 2026.

Firstly, the Court notes that Defendant has then-since filed a Substitution of Attorney naming Abraham Rinck as counsel of record. Thus, Plaintiffs arguments that the Motion is invalid to lack of substitution of counsel are moot.

The Court firstly finds that Defendant has failed to explicitly explain how either Code of Civil Procedure section 657, subdivisions (1), (6), or (7) apply as grounds for new trial. Subdivision (1) does not apply where Defendant does not rely on affidavits of the Court’s minute orders to show irregularity in proceedings. (See Code Civ. Proc.. § 658.) Subdivision (6) does not apply where Defendant contends that subdivisions (1) and (7) apply. (See *Sanchez-Corea v. Bank of America* (1985) 38 Cal.3d 892, 906 [“The ground [in subdivision (6) is separate and distinct from the other grounds listed in section 657 and does not include any, or all, of those other separate and distinct grounds for new trial.”]; see also *McCown v. Spencer* (1970) 8 Cal.App.3d 216, 229, fn. 3 [distinguishing subdivision (6) ground to subdivision (7) ground].) As to subdivision (7), Defendant has failed to demonstrate any “error in law,” let alone that any error was timely “excepted to.” Further, Defendant has failed to demonstrate prejudice due to the error. (See *Donlen v. Ford Motor Co.* (2013) 217 Cal.App.4th 138, 147 [“To be entitled to a new trial, the moving party must also show the error was prejudicial; that it affected a substantial right and prevented him from

obtaining a fair trial.”].)

Even if Defendant were to establish that any of these grounds applied, the Court finds that the Notice is not defective on its face.

The Court first acknowledges that the SVF Grosvenor case stands for the following rule: “[Under section 1161(2)], a notice which spells out that the tenant has the option to make a personal payment or payment by mail must state the name of a person and the person’s telephone number and address for each option provided.” (SVF Grosvenor, *supra*, 120 Cal. App. 5th Supp. at p. 25.) In that case, the Appellate Division rejected the plaintiff’s argument that then notice was valid even though the pay-by-mail option did not contain a name and a telephone number because the personal payment option was sufficient. (*Ibid.*) In finding the notice was invalid, the Appellate Division affirmed the trial court’s granting of defendant’s motion for judgment on the pleadings. (*Id.* at p. 26.)

On its face, the SVF Grosvenor case appears to mirror the arguments made in this case. However, the Court finds that the case is distinguishable. Firstly, in that case, at the bottom of the first page of the Notice, it read “Payment must be made payable to SVF Grosvenor Del Rey and delivered as follows;” and following that statement, there was a pay-by-mail option identifying the payee’s name as “Leasing Office” with the address. (*Id.* at p. 19.) On the top of the second page, there was a personal payment option stating the name of an individual payee, the same address as the mailing address, and the hours of availability, and that the individual could be reached at a telephone number. (*Ibid.*)

In contrast, here, the Notice states the following on the second page: “Within thirty (30) days after service of this notice upon you, the total overdue payment in the amount stated above, must be delivered as follows: [directly below listing both pay-by-mail and pay-in-person options].” (Compl., Exh. 2.) The pay-in-person option names “Brookdale Central Whittier” as the payee. Caselaw acknowledges that a corporate entity, not necessarily a natural person, may be named as the payee. (See *City of Alameda v. Sheehan* (2024) 105 Cal.App.5th 68, 74-81 [holding that “‘person’ as used in section 1161(2) includes a corporation as well as a natural person”].) As to any argument that the pay-by-mail option does not contain a telephone number, the Court notes that 1) the hours of

operation and the telephone number are below both options for payment and 2) nothing indicates that the hours and telephone number are specifically tied to the individual payee. The Court finds that it would be reasonable to interpret the telephone number as applicable to both the pay-by-mail and pay-in-person options. Based on these considerations, the Court agrees with Plaintiffs that any risk of confusion to the tenant present in the SVF Grosvenor case is not present in this case.

In summary, the Court is not persuaded that new trial is warranted based on the grounds cited by Defendant.

Accordingly, Defendant's Motion for New Trial is denied